

25STCV19630 25STCV19630

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-09-01
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Case Number: 25STCV19630 Hearing Date: September 1, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

CESAR BRAVO,

Plaintiff,

vs.

FCA US LLC, et al.,

Defendants.

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CASE NO.: 25STCV19630

[TENTATIVE] ORDER GRANTING MOTION TO COMPEL
DEPOSITION

Dept. 506

8:30 a.m.

September 1, 2026

On June 30, 2025, Plaintiff Cesar Bravo filed this Song-Beverly
action against Defendant FCA US LLC.

On

August 3, 2026, Defendant filed a motion to compel Plaintiff's initial deposition
under Code of Civil Procedure section 871.26, subdivision (c)(1).

Plaintiff

objected to Defendant unilaterally scheduling his deposition on January 22,
2026 and February 10, 2026, before the statutory deadline of February 11,
2026. (Pyle Decl. ¶¶ 4-7.) Defendant again asked Plaintiff for
availability on July 28, 2026, but he did not reply before Defendant filed this
motion. (Pyle Decl. ¶ 8.)

The

Court is guessing that Plaintiff's counsel subscribes to the common belief that
depositions cannot be noticed until after a date is agreed on by the parties
and that to do otherwise is to improperly "unilaterally" set the deposition. It is not improper to unilaterally pick a
date. Plaintiff's other option was to

move for a protective order directing that the deposition be taken at a different time, but he did not. (See Code Civ. Proc., § 2025.420, subd. (b)(2).)

Plaintiff

contends that the motion is now moot because Plaintiff's deposition was confirmed for August 31, 2026. (Khatchadourian Decl. ¶ 7.)

The

parties are ordered to appear at the hearing and inform the Court whether Plaintiff's deposition did occur on August 31, 2026.

IF NO DEPOSITION: The motion to compel deposition is GRANTED. Plaintiff is ordered to appear for his deposition within 30 days.

IF DEPOSITION OCCURRED: The motion is denied as moot.

FOR BOTH SCENARIOS: Defendant's request for mandatory sanctions is GRANTED. Plaintiff did not agree to be deposed until after this motion was filed, and he has not shown good cause. Plaintiff's counsel is ORDERED to pay total sanctions of \$1,500.00 to Defendant within 15 business days. (See Code Civ. Proc, § 871.26, subd. (j)(2).)

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 1st day of September 2026

Hon. Thomas D. Long

Judge of the Superior

Court